

THE TRADE MARKS ACT, 1999 (ACT NO. 47 OF 1999)

CHAPTER I & II: PRELIMINARY & REGISTRATION

Section 2(1)(zb): "trade mark" means a mark capable of being represented graphically and which is capable of distinguishing the goods or services of one person from those of others and may include shape of goods, their packaging and combination of colours.

Section 2(1)(h): "deceptively similar" - a mark shall be deemed to be deceptively similar to another mark if it so nearly resembles that other mark as to be likely to deceive or cause confusion.

Section 9: Absolute grounds for refusal of registration:

(1)(a) Marks devoid of any distinctive character;

(1)(b) Marks consisting exclusively of indications designating kind, quality, quantity, intended purpose, values, geographical origin, or time of production;

(1)(c) Marks customary in current language or established trade practices;

Provided that a trade mark shall not be refused registration if it has acquired distinctive character by use or is a well-known mark.

(2) Deceptive marks, scandalous/obscene marks, marks contrary to public order/morality.

CHAPTER II (Continued): RELATIVE GROUNDS & PROHIBITIONS

Section 11: Relative grounds for refusal of registration:

(1) Likelihood of confusion due to identity/similarity with earlier trade mark and identity/similarity of goods or services.

(2) Protection of well-known trade marks across non-similar goods/services where use takes unfair advantage or is detrimental to repute.

Section 13: Prohibition of registration of names of chemical elements or International

Non-Proprietary Names (INN):

No word which is commonly used and accepted name of any single chemical element/compound or declared by WHO as an International Non-Proprietary Name (INN) shall be registered as a trade mark.

Ayurvedic Brand Protection Strategy under TMA 1999:

1. Generic Sanskrit botanical names (e.g. Ashwagandha, Triphala, Brahmi, Tulsi) cannot be registered monopolistically as word marks due to Section 9(1)(b).
2. Unique composite marks, coined names (e.g. "KairoGlow", "SaktiHerb"), distinctive brand logos, artistic packaging, and composite devices can be registered under Class 5 (Ayurvedic medicines/pharmaceuticals) and Class 30/32 (Ayurveda Aahara / herbal teas).
3. Rights conferred: 10-year validity, indefinitely renewable; exclusive rights under Section 28 and civil/criminal infringement actions under Section 29 and 103/104.